

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jeffrey Mulinelli (S)	Team: Squad #01	CCRB Case #: 201507626	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 06/11/2015 11:27 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/11/2016	Precinct: 23		
Date/Time CV Reported Wed, 09/02/2015 10:21 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 09/09/2015 2:25 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DTS Tirzah Valerio	00629	926894	023 PCT
2. POM Luis Pagan	22268	928915	023 PCT

Officer(s)	Allegation	Investigator Recommendation
A . DTS Tirzah Valerio	Abuse: Det. Tirzah Valerio entered § 87(2)(b) § 87(2)(b), in Manhattan.	A . Exonerated
B . POM Luis Pagan	Abuse: PO Luis Pagan entered § 87(2)(b) § 87(2)(b), in Manhattan.	B . Exonerated
C . DTS Tirzah Valerio	Abuse: Det. Tirzah Valerio refused to provide her shield number to § 87(2)(b)	C . Unsubstantiated
D . POM Luis Pagan	Abuse: PO Luis Pagan refused to provide his shield number to § 87(2)(b)	D . Unsubstantiated

Case Summary

At 11:27 a.m. on June 11, 2015, § 87(2)(b) placed a 911 call and reported that unknown individuals were stealing from her. Det. Tirzah Valerio and PO Luis Pagan, of the 23rd Precinct, responded to § 87(2)(b)'s residence at § 87(2)(b), in Manhattan. Det. Valerio and PO Pagan entered § 87(2)(b)'s apartment (**allegations A and B**). After speaking with § 87(2)(b) for less than 10 minutes, Det. Valerio and PO Pagan began to leave the apartment. § 87(2)(b) asked Det. Valerio and PO Pagan for their shield numbers as they stood in the doorway. Det. Valerio and PO Pagan allegedly failed to respond verbally, and they allegedly backed up when § 87(2)(b) leaned forward to get a closer look at their shields (**allegations C and D**). Det. Valerio and PO Pagan went downstairs and spoke with building management. They did not return, and § 87(2)(b) did not obtain their shield numbers.

§ 87(2)(b) filed this complaint approximately three months after the incident date. Although PO Pagan was assigned a body camera, he did not record any footage of this incident.

Mediation, Civil and Criminal Histories

§ 87(2)(b) was deemed unsuitable to participate in mediation by Inv. Mulinelli and IM Almeyda.

A Notice of Claim inquiry submitted to the Office of the New York City Comptroller returned negative results on November 17, 2015 [see 01 Board Review].

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

This is the first CCRB complaint filed by § 87(2)(b) [see 03 Board Review].

This is the third CCRB complaint filed against Det. Valerio during her 15 year tenure. She has not previously been the subject of the allegations featured in this case. There have been no allegations substantiated against her.

This is the fourth CCRB case filed against PO Pagan during his 14 year tenure. He has not previously been the subject of the allegations featured in this case. There have been no allegations substantiated against him.

Findings and Recommendations

Allegation A –Abuse of Authority: Det. Tirzah Valerio entered § 87(2)(b) in Manhattan.

Allegation B – Abuse of Authority: PO Luis Pagan entered § 87(2)(b), in Manhattan.

§ 87(2)(b) testified that she called 311 to report that she had been burglarized by her neighbor, though she was unable to specify the date on which she placed this call. Det. Valerio and PO Pagan responded to her apartment. § 87(2)(b) stated that she invited Det. Valerio and PO Pagan inside her apartment after she explained that she had been burglarized. When they entered, § 87(2)(b) showed them damaged items inside the apartment [04 Board Review].

Both Det. Valerio and PO Pagan testified that § 87(2)(b) was speaking nonsensically when they arrived, and that she was unable to provide a coherent statement. Det. Valerio testified that she and PO Pagan spoke to § 87(2)(b) in the hallway of her apartment after she invited them inside. PO Pagan stated that he spoke with § 87(2)(b) who was in the living room, but he denied remembering how he gained access to the apartment [see 05-06 Board Review].

The Event Information for this incident revealed that the job was generated from a 911 call placed at 11:27 a.m. on June 11, 2015. The job was broadcast as a 10-10 (possible crime). In the call, § 87(2)(b) stated that “they” were doing “something” to her and stealing from her [see 07 Board Review].

§ 87(2)(g) and it is recommended that **allegations A and B** be closed as **exonerated**.

Allegation C – Abuse of Authority: Det. Tirzah Valerio refused to provide her shield number to § 87(2)(b)

Allegation D – Abuse of Authority: PO Luis Pagan refused to provide his shield number to § 87(2)(b)

§ 87(2)(b) testified that she spoke with Det. Valerio and PO Pagan inside of her apartment for less than 10 minutes. § 87(2)(b) stated that she told the officers that someone had broken into her apartment and fiddled with the wires for her cable TV service. She also believed that “gangsters” messed with those same wires on other occasions. When the officers began to leave, she asked them for their shield numbers as they stood facing her in the doorway. § 87(2)(b) stated that she stepped closer to read the officers’ shields because she is legally blind. According to § 87(2)(b) both Det. Valerio and PO Pagan failed to respond to her request, and they both stepped back when she leaned in to get a closer look at their shields. § 87(2)(b) did not know Det. Valerio’s or PO Pagan’s names or shield numbers at the time she was interviewed by the CCRB [see 04 Board Review].

§ 87(2)(b) a building manager at § 87(2)(b), revealed that the location serves persons requiring long-term hospital care for mental or physical illnesses. § 87(2)(b) expressed concerns about § 87(2)(b)’s mental health, citing that § 87(2)(b) is a problematic tenant who frequently makes allegations that other tenants or building staff members enter her apartment and steal her belongings. § 87(2)(b) acknowledged that she spoke with two officers, a male and a female, around the date of the incident, and that she expressed concerns mentioned above to them. No report was made about the incident by either the NYPD or building management. § 87(2)(b) believed that the allegations made by § 87(2)(b) against both fellow tenants and the police, were false [see 08 Board Review].

Det. Valerio testified that § 87(2)(b) appeared upset and confused, and her tone fluctuated from conversational to yelling throughout the incident. According to Det. Valerio, § 87(2)(b) claimed that people, possibly workers, had come into her apartment, made a mess, and broke a drawer. Det. Valerio stated that § 87(2)(b) did not know who those people were, what time they came, or what

was missing from her apartment. § 87(2)(b) asked the officers to make a report of the incident, but Det. Valerio was unable to discern, based on § 87(2)(b)'s statements, what to make a report about.

Det. Valerio cited § 87(2)(b)'s erratic behavior as a reason for deciding that she needed to speak with a building manager before continuing her investigation. She stated that she then told § 87(2)(b) that she was going to be back but did not state what she was going to do. Det. Valerio testified that § 87(2)(b) became upset, stating that the officers were not going to return. § 87(2)(b) then asked for the officers' names. Det. Valerio stated that both she and PO Pagan provided their names verbally. She did not remember if § 87(2)(b) asked for their shield numbers. She did not remember § 87(2)(b) leaning forward in an attempt to read her shield, which would have been displayed on the chest of her uniform. According to Det. Valerio, § 87(2)(b) did not explain that she was legally blind or had difficulty hearing, and she did not complain that she was unable to obtain the officers' identifying information [see 05 Board Review].

PO Pagan's testimony § 87(2)(g) described her behavior as erratic and stated that he was unable to discern what crime § 87(2)(b) was describing.

PO Pagan testified that he informed § 87(2)(b) that he was going downstairs to speak with building management. At first, § 87(2)(b) responded by repeating that "people" keep coming into her apartment all the time. PO Pagan stated that, in response, he told § 87(2)(b) that he was going to speak with building management to find out how he could help her. § 87(2)(b) then asked for PO Pagan's name. PO Pagan did not remember if § 87(2)(b) also asked Det. Valerio for her name. According to PO Pagan, he verbally provided his name as "Officer Pagan," and he spelled his last name for § 87(2)(b). He stated that Det. Valerio also verbally provided her name at this time, and § 87(2)(b) responded, "Okay." PO Pagan did not know if § 87(2)(b) wrote this information down or if she also asked for their shield numbers, but he denied refusing to provide such information. PO Pagan did not remember hearing § 87(2)(b) complain that she was unable to hear the officers' responses or that she was unable to obtain their shield numbers [see 06 Board Review].

Det. Valerio and PO Pagan both testified that they spoke with § 87(2)(b) who informed them that § 87(2)(b) suffered from dementia and frequently made such accusations and statements against tenants and staff. After speaking with § 87(2)(b) Det. Valerio and PO Pagan decided that the issue was not a police matter and left the building [see 05-06 Board Review].

§ 87(2)(g)
It is therefore recommended that allegations C and D be closed as **unsubstantiated**.

Squad: 1

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date